independent commission would preside over the election and make sure it was free and fair.

Yet there were many matters on which the ANC and the government could not reach agreement, such as the percentage of voting necessary in the assembly to decide constitutional issues and to agree on a bill of rights. Only days before CODESA 2, the government proposed a second body, a senate, composed of regional representatives, as a way of ensuring a minority veto. They also proposed that before all this, CODESA 2 first agree on an interim constitution, which would take months to draw up.

All of this bargaining was going on behind the scenes and by the time CODESA 2 opened on May 15, 1992, prospects for agreement looked bleak. What we disagreed about was threatening all that we had agreed upon. Mr. de Klerk and I had not managed to find a consensus on most of the outstanding issues. The government seemed prepared to wait indefinitely; their thinking was that the longer we waited, the more support we would lose.

The convention was deadlocked at the end of the first day. At that time, the two judges presiding over the talks told Mr. de Klerk and me to meet that evening to attempt to find a compromise. We did meet that night over coffee, and though we did not find a way out of the impasse, we agreed that the negotiations must not founder. “The whole of South Africa and the world is looking at you and me,” I told Mr. de Klerk. “Let us save the peace process. Let us reach some kind of agreement. Let us at least fix a date for the next round of talks.” We decided that we would each speak the following day in a spirit of constructive compromise.

The next afternoon we spoke in the reverse order that we had agreed to at CODESA 1: Mr. de Klerk first and I last. In his remarks, Mr. de Klerk insisted that the National Party did not seek a “minority veto,” but that he did want a system of “checks and balances” so that the majority would not be able “to misuse its power.” Although this certainly sounded to me like outright opposition to the idea of majority rule, when I spoke after Mr. de Klerk, I merely said we needed to work in a constructive manner and dispel the tensions around the negotiations.

Despite our attempts to put a positive face on the matter, the convention ended the second day in a stalemate. The impasse, as I saw it, was caused